

23STCV27209 23STCV27209

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-08-12

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Case Number: 23STCV27209 Hearing Date: August 12, 2026 Dept: 734

Plaintiff tenant alleges uninhabitable conditions at the subject property, including exposure to toxic mold, which Defendants have failed to remediate.

Defendants

Vista Associates, Inc. and 1538 N. Vista Partners, LP move to continue trial and related dates.

TENTATIVE RULING

Defendants

Vista Associates, Inc. and 1538 N. Vista Partners, LP's motion to continue trial is GRANTED. The trial date is CONTINUED to February 22, 2027 at 8:30 a.m. The final status conference is set for February 8, 2027. All trial-related deadlines shall be measured by the new trial date.

ANALYSIS

Defendants

Vista Associates, Inc. and 1538 N. Vista Partners, LP move to continue trial and related dates. The basis for this motion is that counsel Reisz Sideman Eisenberg just recently substituted in the case and Defendant 1538 N. Vista Partners, LP appeared in the action this month, in June 2026. Defendant 1538 N. Vista Partners, LP has therefore not had adequate time to conduct discovery and will not be ready to proceed to trial in 90 days.

Trial dates

are firm and a request for continuance of trial is disfavored. (Cal. Rules of Court, Rule 3.1332(a) & (c).)

However, the court may grant a continuance only on an affirmative showing of good cause requiring the continuance. Cal. Rules

of Court, Rule 3.1332(c) provides:

(c) Grounds for continuance Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance. Circumstances that may indicate good cause include:

. . .

(5) The addition of a new party if:

(A) The new party has not had a reasonable opportunity to conduct discovery and prepare for trial; or

(B) The other parties have not had a reasonable opportunity to conduct discovery and prepare for trial in regard to the new party's involvement in the case;

(Cal.

Rules of Court, Rule 3.1332(c)(5)[bold emphasis added].)

Here, although Defendant Vista Associates, Inc. answered the Complaint on December 11, 2023, Defendant 1538 N. Vista Partners, LP was substituted in as Doe 1 on January 2, 2026. On January 29, 2026, Plaintiff presented a proposed stipulation and order between Plaintiff and Defendants Vista Associates, Inc., 1538 N. Vista LLC and 1538 N. Vista Partners, LP to continue the trial 180 days, which was not signed. Thereafter, on June 3, 2026, Defendants, 1538 N. Vista Partners, LP and Vista Associates Inc. (again) answered the Complaint. This motion was filed on July 1, 2026.

Moving party Defendant 1538 N. Vista Partners, LP has demonstrated good cause for the requested continuance as a newly-added party who has not had a reasonable opportunity to conduct discovery and prepare for trial. (Cal. Rules of Court, Rule 3.1332(c)(5)[bold emphasis added].)

In ruling on a motion for continuance of the trial date, among the other factors the court is to consider are set forth in Cal. Rules of Court, Rule 3.1332(d)(1)-(11), and include as relevant to this motion:

The proximity of the trial date – Here, the trial date is currently set for October 12, 2026—2 months from now. Given the time constraints on discovery cutoffs, this factor favors a trial continuance.

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Whether there was any previous continuance, extension of time, or delay of trial due to any party – There has been one prior continuance of the trial date at Plaintiff's request. (February 11, 2026 Minute Order.) This does not weight against Defendants' request.

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The length of the continuance requested – Four months. The period is justified given the showing of good cause.

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The availability of alternative means to address the problem that gave rise to the motion or application for a continuance – There does not appear to be a realistic alternative means to allow Defendant 1538 N. Vista Partners, LP sufficient time to conduct discovery after being brought into this case.

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The prejudice that parties or witnesses will suffer as a result of the continuance – There does not appear to be any prejudice which would result from the continuance.

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Whether all parties have stipulated to a continuance – Plaintiff does not stipulate to the continuance.

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Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance – The interest of justice are best served by a continuance to permit Defendant 1538 N. Vista Partners, LP sufficient time to conduct discovery after being brought into this case.

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Any other fact or circumstance relevant to

the fair determination of the motion or application – This action was filed on November 6, 2023 . If trial is held in February 2027, the case would be a little over 3 years old.

Taken together, the foregoing factors do not weigh against a continuance given the showing of good cause. The motion to continue trial is GRANTED. The trial date is CONTINUED to February 22, 2027 at 8:30 a.m. The final status conference is set for February 8, 2027. All trial-related deadlines shall be measured by the new trial date.